

24STCV26381 24STCV26381

County: los-angeles

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Department: 408

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Case Number: 24STCV26381 Hearing Date: August 13, 2026 Dept: 408

1. Plaintiff Hilton Mincy's

Motion for Leave to Amend is GRANTED.

2. Defendant Robert Hall's Demurrer to Plaintiff Hilton Mincy's First Amended Complaint is SUSTAINED.

3. Defendant Robert Hall's Motion to Strike

Portions of Plaintiff Hilton Mincy's First Amended Complaint is

DENIED as moot.

The court will inquire whether leave to amend should be granted at the hearing.

I.

BACKGROUND

On October 10, 2024, Plaintiff Hilton Mincy ("Plaintiff") filed a complaint against Defendants LSS Legal Services, Inc. ("LSS") and R. Hall ("Hall" collectively "Defendants").

On February 7, 2025, Plaintiff filed an Amendment to the Complaint correcting "R. Hall" to Robert Hall.

On April 15, 2026, the court sustained Hall's Demurrer to Plaintiff's complaint with leave to amend and denied Hall's Motion to Strike as moot.

On May 13, 2026, Plaintiff filed a First Amended Complaint ("FAC").

On May 15, 2026, Plaintiff filed this Motion for
Leave to Amend. No opposition or other responsive pleading has been filed.

On June 16, 2026, Hall filed this Demurrer and
Motion to Strike as to Plaintiff's FAC. No opposition or other responsive
pleading has been filed.

II.

MOTION FOR LEAVE TO AMEND

A. Legal Standard

Under Code of Civil Procedure section

473(a)(1), "[t]he court may, in furtherance of justice, and on any terms as may
be proper, allow a party to amend any pleading." (Code Civ. Proc., § 473, subd.
(a)(1).) Amendment may be allowed at any time before or after commencement of
trial. (Code Civ. Proc., § 576.) "[T]he court's discretion will usually be
exercised liberally to permit amendment of the pleadings. The policy favoring
amendment is so strong that it is a rare case in which denial of leave to amend
can be justified." (Howard v. County of San Diego (2010) 184 Cal.App.4th
1422, 1428 [internal citations omitted].) "If the motion to amend is timely
made and the granting of the motion will not prejudice the opposing party, it
is error to refuse permission to amend[.]" (Morgan v. Sup. Ct. (1959)
172 Cal.App.2d 527, 530.) Prejudice includes "delay in trial, loss of critical
evidence, or added costs of preparation." (Solit v. Tokai Bank, Ltd. New
York Branch (1999) 68 Cal.App.4th 1435, 1448.)

A motion to amend a pleading before trial
must include a copy of the proposed amendment or amended pleading, which must
be serially numbered to differentiate it from previous pleadings or amendments.
(Cal. Rules of Court, rule 3.1324(a).) The motion must also state what
allegations are proposed to be deleted or added, by page, paragraph, and line
number. (Cal. Rules of Court, rule 3.1324(a).) Finally, a separate supporting
declaration specifying the effect of the amendment, why the amendment is
necessary and proper, when the facts giving rise to the amended allegations
were discovered, and the reason the request for amendment was not made earlier
must also accompany the motion. (Cal. Rules of Court, rule 3.1324(b).)

B. Discussion

Plaintiff seeks leave to file a first amended complaint past the twenty days for leave to amend granted following the court sustaining Hall's Demurrer to Plaintiff's complaint. (Motion, at p. 1-2.) Plaintiff contends that, for personal circumstances, he was unable to file the amended complaint by the deadline ordered. (Ibid.)

The court notes that the motion is unopposed. (Cal. Rules of Court, rule 8.54, subd. (c) ["A failure to oppose a motion may be deemed a consent to the granting of the motion."]; *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.) Moreover, Hall filed a Demurrer and Motion to Strike as to Plaintiff's proposed amended complaint, further conceding that leave to amend should be granted.

Accordingly, the motion is granted.

III.

DEMURRER

A. Legal Standard

"The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of" various grounds listed in statute. (Code Civ. Proc., § 430.10.)

When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

B. Discussion

Hall demurs to Plaintiff's FAC pursuant to Code of Civil Procedure section 430.10, subdivision (e) and (f), on the grounds that it fails to state facts sufficient to constitute a cause of action and it is uncertain.

A party may demur to a complaint where “[t]he pleading is uncertain,” meaning also that it is “ambiguous [or] unintelligible.” (Code Civ. Proc. § 430.10, subd. (f).) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.) “The objection of uncertainty does not go to the failure to allege sufficient facts.” (Brea v. McGlashan (1934) 3 Cal.App.2d 454, 459.) “It goes to the doubt as to what the pleader means by the facts alleged.” (Ibid.) “Such a demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet.” (People v. Lim (1941) 18 Cal.2d 872, 882.) For example, when a plaintiff joins multiple causes of action as one, fails to properly identify each cause of action, or fails to state against which party each cause of action is asserted if there are multiple defendants, a complaint is uncertain. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.)

Code of Civil Procedure section 425.10 requires that a complaint contains a statement of facts constituting the cause of action, in ordinary and concise language. (Code Civ. Proc., § 425.10, subd. (a)(1).) Under California Rules of Court, rule 2.112 “[e]ach separately stated cause of action...must specifically state: (1) Its number (e.g., ‘first cause of action’); (2) its nature (e.g., ‘for fraud’); (3) The party asserting it if more than one party is represented on the pleading (e.g., ‘by plaintiff Jones’); and (4) The party or parties to whom it is directed (e.g., ‘against defendant Smith’).” (Cal. Rules of Court, rule 2.112.)

Hall argues that the FAC is uncertain as Plaintiff fails to identify against which Defendant the claims are being asserted against. (Demurrer, at pp. 3-4.)

Upon review of the complaint, the court again finds that Plaintiff's pleading is uncertain and fails to comply with Rule 2.112. The court is unable to ascertain which Defendant are the causes of action alleged against.

However, even if the court were to ignore such deficiencies, Plaintiff also failed to allege sufficient facts to support the negligence, fraud, and intentional infliction of emotional distress claims based on the allegations that Defendants falsely declared they personally served Plaintiff resulting in a Default Judgment against Plaintiff in an unlawful detainer action. (FAC, ¶¶ 14-16.) Such allegations fail to establish a duty of care, breach of such duty, and causation to support a negligence cause of action. (McIntyre v. Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671 [in order to state a claim for negligence, Plaintiff must allege the elements of (1) "the existence of a legal duty of care," (2) "breach of that duty," and (3) "proximate cause resulting in an injury."].) The allegations are also insufficient to meet the higher pleading standard required for a fraud claim. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645 [the facts constituting the alleged fraud must be alleged factually and specifically as to every element of fraud, as the policy of "liberal construction" of the pleadings will not ordinarily be invoked.].) Lastly, the alleged conduct does not appear to be extreme or outrageous to assert a claim for intentional infliction of emotional distress. (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009 ["Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community."]) [citation and ellipses omitted].)

The court also notes that Plaintiff failed to file an opposition, effectively consenting to the Court sustaining the demurrer without leave to amend. (Cal. Rules of Court, rule 8.54, subd. (c) ["A failure to oppose a motion may be deemed a consent to the granting of the motion."]; Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.)

Accordingly, the demurrer is sustained.

The court will inquire whether leave to amend should be granted at the hearing.

IV.

MOTION TO STRIKE

A. Legal Standard

Pursuant to Code of Civil

Procedure section 436, “the court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a)

Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code

Civ. Proc., § 436.) The grounds for a motion to strike must “appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437.)

B. Discussion

Hall seeks to strike

Plaintiff’s request for punitive damages. (Motion, at pp. 3-5.)

As the

court sustained Hall’s Demurrer to Plaintiff’s FAC, the motion is denied as moot.

V.

CONCLUSION

1. Plaintiff Hilton Mincy’s

Motion for Leave to Amend is GRANTED.

2. Defendant Robert Hall’s Demurrer to Plaintiff Hilton Mincy’s First Amended Complaint is SUSTAINED.

3. Defendant Robert Hall’s Motion to Strike Portions of Plaintiff Hilton Mincy’s First Amended Complaint is DENIED as moot.

The court will inquire whether leave to amend should be granted at the hearing.